

Background

On October 7, 2025, Plaintiffs Shelby Sifers et al. filed Notice of Hearing, through Counsel Matthew Ruan, on Verified Application for Admission of Kyle A. Shamberg to the Bar of this Court Pro Hac Vice (“Motion”). The Motion was supported by the Declaration of Kyle Shamberg. The Proof of Service shows that service was accomplished via mail on October 7, 2025, and that the State Bar was notified via the Admissions Applicant Portal.¹ The Court did not receive timely opposition from Defendant NBCUniversal Media.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the application of Kyle Shamberg contains a declaration which declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Shamberg is an attorney licensed to practice in Illinois and New York, and before District Courts for the Northern, Central, and Southern Districts of Illinois and the Courts of Appeals for Second and Seventh Circuits. He is employed by Carroll Shamberg LLC in Chicago, Illinois. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant’s motion is granted. Kyle Shamberg is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 26, 2026.

6. 9:00 AM CASE NUMBER: C25-01550
CASE NAME: EVERETT WATROUS III VS. EVERETT WATROUS IV
***HEARING ON MOTION IN RE: DISQUALIFY COUNSEL**
FILED BY: WATROUS IV, EVERETT D.
TENTATIVE RULING:

Defendants and Cross-Complainants Everett Watrous IV, April Watrous, and CMM Systems, Inc bring this Motion to Disqualify counsel for Plaintiff and Cross-Defendant Everett Watrous IV. Plaintiff filed a timely opposition. Both parties have submitted declarations in support of their filings.

¹ Although California Rule of Court 9.40 specifies that service must be made upon the State Bar at its San Francisco office, the State Bar website directs notice to be given through the portal.

This case involves an intra-family dispute regarding a contract for stock purchase by the Defendant Everett Watrous IV of Plaintiff Everett Watrous III's shares in Defendant CMM Systems, Inc. This case is in its early stages. Defendants have now filed a motion to disqualify Thomas del Beccaro as counsel for Plaintiff Watrous III, alleging that he was involved in the stock purchase agreement as attorney for Defendant CMM Systems and holds relevant factual information at issue in the case. The sole evidence in support of this motion is a brief declaration—one page of substance—by Defendant April Watrous.

"A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice." (*City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" (*Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.)

Rules of Professional Conduct

Defendants cite three Rules of Professional Conduct purportedly at issue here: Rules 1.7, 1.9, and 3.7.

Rule 1.7(a) provides that "A lawyer shall not, without informed written consent* from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter."

Finally Rule 1.9(a) states, "A lawyer who has formerly represented a client in a matter shall not thereafter represent another person* in the same or a substantially related matter in which that person's* interests are materially adverse to the interests of the former client unless the former client gives informed written consent."

Rule 3.7 states, in pertinent part: "A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1) the lawyer's testimony relates to an uncontested issue or matter; (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or (3) the lawyer has obtained informed written consent from the client."

"In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) 'whether counsel's testimony is, in fact, genuinely needed'; (2) 'the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons'; (3) 'the combined effects of the strong interests parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.'" (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81 (*Doe v. Yim*).) "[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions." (*Ibid.*)

The Motion is fatally flawed. Defendant's declaration does not state that it is based on personal knowledge: "I have read the foregoing Motion to Disqualify Counsel and know the contents thereof. I am informed and believe that the matters stated therein are true and on that ground, I allege that

they are true.” Defendant April Watrous lacks personal knowledge for the statements in her declaration. She does not state that she has knowledge of this information but instead that she has been informed that this information is true. Indeed, she asserts no basis for how she could know this information, except through hearsay from non-declarant parties, which is confirmed by the Declaration of Everett Watrous III. Defendants’ Reply seems to confirm this lack of personal knowledge, as it indicates that her statements are all premised on her review of documents.² Whether those documents contain any competent evidence of conflict would be a different question, but placed before the Court in this format, they are, at most, hearsay. As Plaintiff contends, April Watrous’s declaration is therefore not competent evidence of any conflict. Evid. Code § 702.

There is no competent evidence that Counsel del Beccaro ever represented CMM Systems, Inc. or has any knowledge with respect to CMM Systems, Inc. All competent evidence suggests he was, and remains, Everett Watrous III’s personal lawyer. Indeed, even Defendants’ cross-complaint, at paragraph 10, characterizes the Stock Purchase Agreement as between the two individuals. Aside from the vague and unsubstantiated allegations in the declaration, Defendants cite *absolutely no law or facts* in support of the assertion that the representation of Plaintiff Watrous III in a sale of his shares was necessarily a representation of the corporation. To the extent that Defendants wish to depose Counsel del Beccaro as to “contested issues regarding the contract’s interpretation,” that would seem to run squarely into trampling on the fact-finder’s role in interpreting the disputed contract and not be admissible in any event. To the extent that Defendants wish to depose Counsel regarding intent or negotiations, he would possess no relevant factual information beyond that of Plaintiff Watrous III, as he never spoke with Defendants.

For the reasons set forth above, Defendants’ Motion is **denied**. The Court declines to award sanctions.

7. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY:

TENTATIVE RULING:

This matter comes before the Court in a slightly unusual procedural posture. The parties appear to have proceeded straight to arbitration without any filing in this Court.³ When a dispute about expert fees arose, however, the arbitrator apparently determined that it should be resolved in Superior Court, so Claimant has filed a stand-alone motion. Claimant Juliano Silva sought to take the deposition of Respondent James River Insurance’s expert, Dr. Robert Rovner. They now seek to reduce the fee, arguing that it was not reasonable. Both parties submitted briefing and declarations. As further explained below, Claimant’s motion is **granted**.

² That the brief makes this claim does not save the declaration, as the declaration itself remains entirely vague as to the basis of the statements within it. Counsel cannot rescue a faulty declaration with statements in a brief.

³ The Court saw some discussions in the papers about how the matter arrived in arbitration—nothing written here is intended to express any findings or opinions on that issue.